

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 06/12/2026 TIME: 1:30 P.M. DEPT: L CASE NO: CV0003675

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: MARTIN G.

PLAINTIFF: JAMES A.
COSCULLUELA

vs.

DEFENDANT: BARBIER SECURITY
GROUP

NATURE OF PROCEEDINGS: MOTION – OTHER: PRELIMINARY APPROVAL OF
CLASS ACTION SETTLEMENT

RULING

On March 20, 2026, Plaintiff filed a motion seeking an order approving a representative settlement under California’s Private Attorney General Act, Labor Code § 2698, et seq.

Defendant stipulates to the settlement.

The terms are:

1. Defendant will pay a maximum of \$650,000.00, which will be distributed to approximately 782 Class Members on a pro rata basis according to the total Workweeks worked by each Class Member during the Class Period.
2. The Administrator will disburse the entire Gross Settlement Amount without requiring Participating Class Members to submit any claim as a condition of payment. Class Members need only take action if they wish to request exclusion from the Settlement;
3. The Settlement will release specified wage-and-hour claims for those Class Members who do not opt out of the Settlement, as well as specified claims for PAGA Penalties for all Aggrieved Employees. The settlement also broadly includes a release of including claims for vested benefits, wrongful termination, violation of the Fair Employment and Housing Act, unemployment insurance, disability, social security, workers’ compensation, or claims based on facts occurring **outside** the Class Period.;
4. Allocation of \$50,000.00 to PAGA penalties, sixty-five percent (65%) of which (\$32,500.00) will be paid to the Labor and Workforce Development Agency (“LWDA”), and thirty-five percent (35%) of which (\$17,500.00) will be paid to all persons currently or formerly employed by Defendant as a non-exempt employee in the State of California (“PAGA Members”) at any time during the period from August 14, 2023, to May 22, 2025 (“PAGA Period”) Any settlement checks that are mailed to the Class Members and

remain uncashed after 180 days of the date of issuance will be cancelled, and the moneys will be directed to the State of California's Unclaimed Property Fund or other recipient as directed by the Court

5. Cost of settlement administration shall be up to \$13,000 of the settlement fund;
6. Enhancement/Service Awards to Plaintiff: Defendant will not oppose the application for Class Representative Enhancement of up to \$7,500 for each Plaintiff, to be paid from the settlement fund;
7. Defendant does not oppose Class Counsel's application for fees of up to one third (1/3) of the Gross Settlement Amount (currently estimated to be \$216,666.67) and up to \$60,000.00 in reimbursement of litigation costs to Plaintiffs' Counsel. The total amount of PAGA civil penalties to be paid from the Gross Settlement Amount totals \$15,000.00 with 65% (\$9,750.00 (Nine Thousand Seven Hundred Fifty Dollars)) allocated to the LWDA PAGA Payment and 35% (\$5,250.00 (Five Thousand Two Hundred Fifty Dollars)) allocated to the Individual PAGA Payments..
8. Settlement fund residue is proposed to be returned to the state "unclaimed property fund" in the name of the class member.

The motion is not opposed, and the settlement amount is approved. However, Plaintiff's requests for approval of the settlement is DENIED.

Counsel for Plaintiff is to appear to support the request for 33% of the settlement fund, plus costs for a fee award of \$216,64500. Counsel also seeks recovery of costs in the amount of \$60,000. Within that award, counsel asks for a fee multiplier. The complaint was filed in August 2024 and answered in October 2024. There is no indication that the parties engaged in protracted litigation.

Counsel shall also be prepared to discuss how the contingency fee was determined, and how the attorney's fee issue was negotiated. Plaintiff's counsel should also be prepared to discuss the proposed lodestar fee, for a comparison to the proposed contingency award.

Counsel is also to address and support the request for recovery of \$60,000 in costs.

The class member release goes beyond the wage and hour issues listed in the complaint to include workplace discrimination and worker disability issues.. The waiver is expansive and it reaches beyond the class claim period. It is not approved.

The public policy purpose of California's **Private Attorneys General Act (PAGA)** is to enhance the state's ability to enforce labor laws by deputizing private citizens to act as law enforcement proxies). Regarding paragraph 8 above, the parties are ordered to meet and confer to discuss an award of the residual settlement to a non-profit organization whose purpose is tied more closely to the objective of PAGA.

Appearances are required.

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not

necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing while using the virtual remote courtroom. If the connection is inadequate, the Court may proceed with the hearing in the party's absence. If it is determined that you are driving your car during the hearing, you will be removed from the virtual courtroom. (Yes, this happens).

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 06/12/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0005317

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: ROBERT C. PLACAK &
ASSOCIATES, INC.

vs.

DEFENDANTS: DEBBY BAKER PAGE
ET AL.

NATURE OF PROCEEDINGS: MOTION – COMPEL ANSWERS TO INTERROGATORIES
- DISCOVERY FACILITATOR PROGRAM

2) MOTION – COMPEL – DISCOVERY FACILITATOR PROGRAM

RULING

The matter is transferred to the Presiding Judge, Hon. Stephen Freccero for reassignment. The hearing date will be continued to a law and motion date for the newly assigned judge. The parties will receive notice of the new hearing date.

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing while using the virtual remote courtroom. If the connection is inadequate, the Court may proceed with the hearing in the party's absence. If it is determined that you are driving your car during the hearing, you will be removed from the virtual courtroom. (Yes, this happens).